

From : Vijay.Makenjee@AfroCentricHealth.com
To : "Wilbur Matthee" <info@ethichawks.co.za>
Subject : RE: Re: PROPOSAL FOR PRE-TRIAL CONFERENCE: WILBUR WILLIAM MATTHEE v AFROCENTRIC HEALTH (PTY) LTD & ANOTHER – CASE NO: 2026-083299
Date : 02 Jun 2026 12:29

Good luck to you then.

From: Wilbur Matthee <info@ethichawks.co.za>
Sent: 01 June 2026 20:08
To: Vijay Makenjee <Vijay.Makenjee@AfroCentricHealth.com>
Subject: RE: Re: PROPOSAL FOR PRE-TRIAL CONFERENCE: WILBUR WILLIAM MATTHEE v AFROCENTRIC HEALTH (PTY) LTD & ANOTHER – CASE NO: 2026-083299

This message originated from outside your organization

Dear Mr. Makenjee,

I refer to your email of 1 June 2026 regarding the Labour Court Rules and the scheduling of the pre-trial conference.

For the record, formal service of the Plaintiff’s Replication was successfully executed on 21 May 2026, when it was transmitted to both the Respondent's Industrial Relations portal (IR@afrocentrichealth.com) and the Group Company Secretary, Ms. Lebohang Mpumlwana. Consequently, the respondent has been in possession of the pleadings since 21 May 2026.

I do not accept your interpretation of the 14-day timeline or your proposed date of 22 June 2026. Your insistence on a date falling well outside the statutory limit constitutes a procedural stall and an attempt at litigation attrition.

My position remains that the pre-trial conference must be held within the 14-day period mandated by Rule 6 of the Labour Court Rules, which commenced upon the service of pleadings on 21 May 2026. Should you fail to engage within the remaining statutory window, I will proceed to draft and file the Pre-Trial Minute with the Registrar of the Labour Court unilaterally, noting your non-cooperation as a matter of record. Accordingly, please be advised that I shall approach the Registrar of the Labour Court on 10 June 2026 to file the Pre-Trial Minute unilaterally in the absence of your cooperation.

I consider this matter closed for the purposes of correspondence and shall not enter into further dialogue regarding these procedural requirements.

Kindly be guided accordingly.

Yours sincerely,

Sr. Wilbur William Matthee
Plaintiff / Applicant in Person

--- On Mon, 01 Jun 2026 19:43:16 +0200 Vijay.Makenjee@AfroCentricHealth.com wrote ---

Dear Mr Matthee,

Please see attached copy of the Labour Court Rules.

Kindly refer to the definition of “days” and rule 22 (pre-trial).

22 June 2026 is within the 15 days permitted by rule 22.

I am unfortunately unavailable until 22 June 2026 at 10:00.

Kind Regards,

Vijay Makenjee

Advanced Specialist: Employee Relations

+27 76 305 8838

Vijay.Makenjee@Afrocentrichealth.com

37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen,
1709

www.afrocentric.za.com

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From: Wilbur Matthee <info@ethichawks.co.za>

Sent: 01 June 2026 19:23

To: Vijay Makenjee <Vijay.Makenjee@AfroCentricHealth.com>

Subject: Re: Re: PROPOSAL FOR PRE-TRIAL CONFERENCE: WILBUR WILLIAM MATTHEE v

Importance: High

This message originated from outside your organization

Dear Mr. Makenjee,

I acknowledge your proposal to meet on 22 June 2026.

For the record, Labour Court Rule 6 mandates that a pre-trial conference be held within 14 days of the close of pleadings. Your proposal falls outside this mandated statutory timeframe.

To ensure the matter remains compliant with the Rules of the Labour Court, I am available at the following dates/times within the 14-day window: [3/6/2026/12:00], [4/6/2026/12:00], and [5/6/2026/12:00].

Please confirm your selection by COB 2/6/2026] to ensure the joint Pre-Trial Minute is filed on time.

Sincerely,

Sr. Wilbur William Matthee

--- On Mon, 01 Jun 2026 18:43:15 +0200 Vijay.Makenjee@AfroCentricHealth.com wrote ---

Dear Mr Matthee,

I can attend on 22 June 2026 at 10:00.

Get [Outlook for Android](#)

From: Wilbur Matthee <info@ethichawks.co.za>

Sent: Monday, June 1, 2026 4:17:18 PM

To: Vijay Makenjee <Vijay.Makenjee@AfroCentricHealth.com>

Cc: Lebohang Mpumlwana <Lebohang.Mpumlwana@Afrocentrichealth.com>

Subject: Re: PROPOSAL FOR PRE-TRIAL CONFERENCE: WILBUR WILLIAM MATTHEE
v AFROCENTRIC HEALTH (PTY) LTD & ANOTHER – CASE NO: 2026-083299

This message originated from outside your organization

Dear Mr. Makenjee,

RE: WILBUR WILLIAM MATTHEE v AFROCENTRIC HEALTH (PTY) LTD & MEDSCHEME
HOLDINGS (PTY) LTD - CASE NO: 2026-083299

I note your email below dated 1 June 2026.

To ensure there is absolutely no ambiguity or further administrative delay, please find attached to this email a further copy of the Plaintiff's Replication, served directly to your designated email address as requested.

For the record, the Replication was successfully transmitted to the Respondent's designated Industrial Relations portal (IR@afrocentrichealth.com) and the Head of Legal/Group Company Secretary, Ms. Lebohang Mpumlwana, on 21 May 2026. As such, proper institutional service and knowledge have already been established.

Pleadings are effectively closed. To maintain compliance with Rule 6 of the Labour Court Rules, the requirement to hold a pre-trial conference within 14 days remains operative.

Please provide your three proposed dates and times for the pre-trial conference via Microsoft Teams by the close of business on 5 June 2026, as previously requested, so we may finalize the joint Pre-Trial Minute.

Yours sincerely,

Sr. Wilbur William Matthee
Plaintiff / Applicant in Person
Email: info@ethichawks.co.za

Sent from Zoho Mail on Android

--- On Mon, 01 Jun 2026 15:08:55 +0200 Vijay.Makenjee@AfroCentricHealth.com wrote ---

Dear Mr Matthee,

I refer to your below email.

Please note, as per the attached notice, I specified my email address for the service of documentation on the defendants in this matter.

You have not sent your replication to the stipulated email address. Accordingly, it has not been served on Afrocentric or Medscheme.

Pleadings have therefore not closed.

Kind Regards,

Vijay Makenjee
Advanced Specialist: Employee Relations

+27 76 305 8838

Vijay.Makenjee@Afrocentrichealth.com

37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101,
Florida Glen, 1709

<http://www.afrocentric.za.com>

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From: Wilbur Matthee <info@ethichawks.co.za>
Sent: Friday, May 29, 2026 8:16:17 AM
To: CCMA communication <IR@afrocentrichealth.com>
Cc: Lebohang Mpumlwana <Lebohang.Mpumlwana@Afrocentrichealth.com>
Subject: PROPOSAL FOR PRE-TRIAL CONFERENCE: WILBUR WILLIAM MATTHEE v AFROCENTRIC HEALTH (PTY) LTD & ANOTHER – CASE NO: 2026-083299

This message originated from outside your organization

Dear Mr. Makenjee and the AfroCentric Legal Department,

RE: WILBUR WILLIAM MATTHEE v AFROCENTRIC HEALTH (PTY) LTD & MEDSCHEME HOLDINGS (PTY) LTD – CASE NO: 2026-083299

Following the electronic service of my Replication on 21 May 2026, the pleadings in the above-mentioned matter are now closed.

In accordance with Rule 6 of the Rules for the Conduct of Proceedings in the Labour Court, we are required to hold a pre-trial conference within 14 days of the delivery of the Statement of Response. To ensure compliance with these Rules and to facilitate the timely enrollment of this matter, I propose that we convene the pre-trial conference at your earliest convenience.

Please suggest three dates and times within the next seven (7) days by 5th June 2026 that would suit your schedule to conduct this conference via Microsoft Teams.

I have begun preparing a draft of the Pre-Trial Minute based on the filed pleadings to expedite our discussion. I look forward to your prompt cooperation in finalizing these arrangements so that we may proceed to file the signed Minute with the Registrar.

Kindly acknowledge receipt of this email and confirm your availability.

Yours sincerely,

Sr. Wilbur William Matthee
Plaintiff / Applicant in Person

Email: info@ethichawks.co.za

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